

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Cassidy Rommeney,

:

Date Purchased:

:

Date Filed:

Plaintiff,

:

SUMMONS

-against-

:

City of New York, New York City Police Department, :
 Detective Joseph Weldon, Tax Reg # 942693 of the :
 Tactical Narcotics Team, Detective Thomas Lane, Tax :
 Reg # 942034 of the Tactical Narcotics Team, Sergeant :
 Steven Franzel, Tax Reg # 945733 of the Tactical :
 Narcotics Team, Police Officer Alexander Lewis, Tax :
 Reg # 967164 of the Tactical Narcotics Team, Detective :
 Edwin Montanez, Tax Reg # 955530 of the Tactical :
 Narcotics Team and New York City Police Officers John :
 Doe,

:

Defendant.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Queens County.

Plaintiff designates Queens County as venue of trial.

Dated: March 23, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse
Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Detective Joseph Weldon, Tax Reg # 942693 of the Tactical Narcotics Team

Detective Thomas Lane Tax Reg # 942034 of the Tactical Narcotics Team

Sergeant Steven Franzel, Tax Reg # 945733 of the Tactical Narcotics Team

Police Officer Alexander Lewis, Tax Reg # 967164 of the Tactical Narcotics Team

Detective Edwin Montanez, Tax Reg # 955530 of the Tactical Narcotics Team

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

Cassidy Rommeney,

:

Plaintiffs

:

VERIFIED COMPLAINT

-against-

:

City of New York, New York City Police Department, :
Detective Joseph Weldon, Tax Reg # 942693 of the :
Tactical Narcotics Team, Detective Thomas Lane, Tax :
Reg # 942034 of the Tactical Narcotics Team, Sergeant :
Steven Franzel, Tax Reg # 945733 of the Tactical :
Narcotics Team, Police Officer Alexander Lewis, Tax :
Reg # 967164 of the Tactical Narcotics Team, Detective :
Edwin Montanez, Tax Reg # 955530 of the Tactical :
Narcotics Team and New York City Police Officers John :
Doe,

:

Defendants

:

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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Casady Rommeney hereinafter referred to as “ROMMENEY”) is a resident of Queens, State of New York.
2. That at all times hereinafter mentioned, Detective Joseph Weldon, Tax Reg # 942693 of the Tactical Narcotics Team, (hereinafter referred to as “WELDON”) was employed by the New York City Police Department.

3. That at all times hereinafter mentioned, Detective Thomas Lane, Tax Reg # 942034 of the Tactical Narcotics Team, (hereinafter referred to as “LANE”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Sergeant Steven Franzel, Tax Reg # 945733 of the Tactical Narcotics Team, (hereinafter referred to as “FRANZEL”) was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Police Officer Alexander Lewis, Tax Reg # 967164 of the Tactical Narcotics Team, (hereinafter referred to as “LEWIS”) was employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Detective Edwin Montanez, Tax Reg # 955530 of the Tactical Narcotics Team, (hereinafter referred to as “MONTANEZ”) was employed by the New York City Police Department.
7. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
8. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
9. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
10. On or after March 16, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

11. That on or about October 30, 2023 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
12. That on or about March 16, 2023 at approximately 3:00 PM in the vicinity of Cornaga Avenue and Beach 22 Street, Queens, NY Plaintiff observed her father Douglas Rommeney being unlawfully arrested by police and questioned why he was being arrested.
13. That WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES then stopped, handcuffed and arrested Plaintiff.
14. That at no time did Plaintiff engage in any criminal or unlawful behavior.
15. That at no time did Plaintiff hit and/or push LANE.
16. That at no time did Plaintiff punch and/or kick WELDON, LANE, FRANZEL, LEWIS or DOES.
17. That at no time did Plaintiff cause damage to front pocket of FRANZEL's hooded sweatshirt.
18. That at no time did Plaintiff spit on MONTANEZ.
19. That at no time did Plaintiff assault anyone including WELDON, LANE, FRANZEL, LEWIS, MONTANEZ or DOES.
20. That at no time did Plaintiff cause destruction to property belonging to another person.
21. That at no time did Plaintiff obstruct governmental administration.
22. That at no time did Plaintiff harass WELDON, LANE, FRANZEL, LEWIS, MONTANEZ or DOES.

23. That after Plaintiff was arrested, she was transported to the 101 precinct.
24. That while Plaintiff was held in the 101 precinct she was confined to a cell with numerous other female prisoners.
25. That after being held in the 101 precinct, she was subjected to a strip search and nothing of an unlawful nature was recovered.
26. That after spending several hours in the 101 precinct, Plaintiff was transported to a local Queens hospital wherein she received medical attention for anxiety related to her arrest, heart related issues stemming from this arrest and complications with a pre-existing autoimmune condition.
27. That while Plaintiff was being treated in the New York County Hospital, she was handcuffed by her wrists and legs.
28. That after spending several hours in the Queens County hospital, Plaintiff was transported back to the 101 precinct.
29. That after spending several hours at the 101 precinct, Plaintiff was transported to Queens County Central Booking located at 125-01 Queens Boulevard, Queens, NY.
30. That while at Queens County Central Booking, Plaintiff was held in a cell with numerous other female prisoners for several hours.
31. That on or about March 12, 2023, Plaintiff was arraigned on docket CR-006948-23QN wherein she was charged with Assault in the Second Degree, Criminal Mischief in the Fourth Degree, Obstructing Governmental Administration in the Second Degree and Harassment in the Second Degree.
32. That at the arraignment, Plaintiff was released and ordered to return to court.

33. That on and between March 12, 2023 and October 4, 2023 Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Queens County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

36. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional and negligent manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

37. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

38. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for her physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

39. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

40. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

43. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

45. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

48. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

49. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES persisted in their false claim that Plaintiff assaulted them when they knew she did not.

50. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, FRANZEL persisted in their false claim that Plaintiff damaged his property when he knew she did not.

51. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES

persisted in their false claim that Plaintiff obstructed governmental administration when they knew she did not.

52. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES persisted in their false claim that Plaintiff harassed them when they knew she did not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

53. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 52, as if more fully stated herein at length.

54. At all times pertinent hereto, WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

55. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

56. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

57. The City of New York and New York City Police Department's failure to provide adequate training and supervision to WELDON, LANE, FRANZEL, LEWIS, MONTANEZ and

DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

58. That the City of New York and New York City Police Department were aware that WELDON had seventeen (17) Civilian Complaint Review Board allegation of misconduct, two (2) of which were substantiated and despite such, they continued to employ WELDON.

59. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Geemps Felix v. City of New York, et al. index number 706245/2016, in Queens County, Supreme Court and despite such, they continued to employ WELDON.

60. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Levar Jemmott et al. vs City of New York, et al., index number 508811/2015, Supreme Court, Kings County and despite such, they continued to employ WELDON.

61. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Malcolm Perry v. City of New York, et al. index number 15CV05947 in the U.S District Court, Eastern District and despite such, they continued to employ WELDON.

62. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Luaja Collins v. City of New York, et al., index number 15CV04893 in the U.S District Court, Eastern District and despite such, they continued to employ WELDON.

63. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Keisha Corbett et al v. City of New York et al., index number 15CV03412 in the U.S District Court, Eastern District and despite such, they continued to employ WELDON.

64. That the City of New York and New York City Police Department were aware that WELDON was the subject of a civil rights lawsuit, Darnell Boatwright v. City of New York et al., index number 14CV06975 in the U.S District Court, Eastern District and despite such, they continued to employ WELDON.

65. That the City of New York and New York City Police Department were aware that LANE had one (1) Civilian Complaint Review Board allegation of misconduct and despite such, they continued to employ LANE.

66. That the City of New York and New York City Police Department were aware that LANE had one (1) discipline case, under case number 2015-14338 wherein LANE was found guilty on February 23, 2016 of while on-duty, wrongfully arrested an individual known to the Department when no offense or crime had occurred. Further LANE was convicted of, while on-duty, wrongfully made inaccurate statements on criminal court summonses and despite such, they continued to employ LANE.

67. That the City of New York and New York City Police Department were aware that LANE was the subject of a civil rights lawsuit, Nana Barnes v. City of New York, et al., index number 712205/2017, Supreme Court, Queens County and despite such, they continued to employ LANE.

68. That the City of New York and New York City Police Department were aware that FRANZEL had twelve (12) Civilian Complaint Review Board allegation of misconduct, one (11) of which was substantiated and despite such, they continued to employ FRANZEL.

69. That the City of New York and New York City Police Department were aware that FRANZEL was named to the adverse credibility list maintained by the City of New York and despite such, they continued to employ FRANZEL.

70. That the City of New York and New York City Police Department were aware that FRANZEL had one (1) discipline case, under case number 2022-25335 wherein FRANZEL was found guilty on February 23, 2016 of while on-duty, wrongful threat of force and despite such, they continued to employ WELDON.

71. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Tiara White et al v. City of New York et al., index number 22CV04518 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

72. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Lavon Bartholomew v. City of New York, index number 21CV03729 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

73. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Syndie Remy et al v. City of New York, et al., index number 20CV06189 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

74. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Thomas Hamm v. City of New York, et al. index number 517034/2019, Supreme Court, Kings County and despite such, they continued to employ FRANZEL.

75. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Eric Morris-Mendoza v. City of New York et al., index number 18CV04127, in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

76. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Angelique Lewis v. City of New York, et al., index number 17CV00066 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

77. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Daquinn Gibson v. City of New York, et al. index number 008224/2015, Supreme Court, Kings County and despite such, they continued to employ FRANZEL.

78. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Terry Jones v. City of New York et al., index number 15CV00573 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

79. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Sean Mcfadden v. City of New York et al.,

index number 14CV06940 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

80. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Nicholas Tencati-Soverall v. City of New York et al., index number 14CV01552 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

81. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Shakeeba Glenn v. City of New York et al., index number 13CV06875 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

82. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Rayquan Callahan v. City of New York, et al., index number 13CV03607 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

83. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Yves Brice v. City of New York, et al., index number 011178/2013, Supreme Court, Kings County and despite such, they continued to employ FRANZEL.

84. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, David Moore v. City of New York, et al., index number 12CV05480 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

85. That the City of New York and New York City Police Department were aware that FRANZEL was the subject of a civil rights lawsuit, Britton et al v. City of New York, et al., index number 15CV06710 in the U.S District Court, Eastern District and despite such, they continued to employ FRANZEL.

86. That the City of New York and New York City Police Department were aware that LEWIS had ten (10) Civilian Complaint Review Board allegation of misconduct, and despite such, they continued to employ LEWIS.

87. That the City of New York and New York City Police Department were aware that MONTANEZ had fourteen (14) Civilian Complaint Review Board allegation of misconduct, and despite such, they continued to employ MONTANEZ.

88. That the City of New York and New York City Police Department were aware that MONTANEZ was named to the adverse credibility list maintained by the City of New York and despite such, they continued to employ MONTANEZ.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

89. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 88 as if more fully stated herein at length.

90. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

91. Upon information and belief, the City of New York and New York City Police Department maintained a policy and practice of claiming that people were involved in crimes to retaliate when people inquire about other getting arrested by New York City Police Officers.

92. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.

Attorney for Plaintiffs

888 Grand Concourse

Suite 1H

Bronx, NY 10451

(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 23, 2024

Jason Steinberger
Jason A. Steinberger